

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
MARCH 25, 2026
8:30 a.m.

1. ANTHONY ADAMS V. BETH ADAMS

25FL0799

This matter is before the court for hearing of the Request for Order (RFO) filed by the Respondent on February 11, 2026, seeking an award of attorney fees in the amount of \$6,937.50 pursuant to Family Code section 2030 (need based). To date, there is no proof of service for the RFO in the court's file.

Nonetheless, on February 20, 2026, the Petitioner filed a Responsive Declaration and supporting declaration, both of which were electronically served upon the Respondent's attorney that same day according to the proof of service, also filed February 20, 2026. Based on the filing of the Petitioner's response, the court deems the Petitioner to have waived any defect in service of process.

On March 04, 2026, the Respondent filed a reply, which was electronically served upon the Petitioner's attorney that same day according to the proof of service, also filed March 04, 2026. Respondent objects to Petitioner's response on the grounds that it contains confidential settlement negotiations, in violation of Evidence Code section 1152. That section provides in relevant part: "Evidence that a person has, in compromise..., furnished or offered or promised to furnish money... to another who has sustained or will sustain or claims that he or she has sustained or will sustain loss or damage, as well as any conduct or statements made in negotiation thereof, is inadmissible to prove his or her liability for the loss or damage or any part of it." (Evid. Code, § 1152, subd. (a).) The instant request, however, is for a need-based award of attorney fees, as opposed to a substantive request related to dissolution of the marriage. The level of counsel's cooperation and litigiousness is relevant to a consideration of a request for attorney fees, even when the request is based on need, as opposed to a request for fees as a sanction. Therefore, the court overrules the objection.

A trial court must ensure each party has access to legal representation "by ordering, if necessary based on the income and needs assessments, one party ... to pay the other party ... whatever amount is reasonably necessary for attorney's fees." (Fam. Code, § 2030, subd. (a)(1).) If fees are sought, the court must find whether an award "is appropriate, whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." (Id., subd. (a)(2).) "If the findings demonstrate disparity in access and ability to pay, the court shall make an order awarding attorney's fees and costs." (*Ibid.*)

The court finds that an award to Respondent based on need is appropriate in this case. As relevant here, the Petitioner's most recent Income and Expense Declaration (I&E), filed November 18, 2025, shows the Petitioner has \$42,324.00 cash in a deposit account. Therefore, the court will award the Respondent attorney fees payable by the Petitioner in the amount of \$3,500 without prejudice to further request(s) as the matter proceeds.

TENTATIVE RULING #1: THE RFO IS GRANTED IN PART. PURSUANT TO FAMILY CODE SECTION 2030, THE COURT AWARDS THE RESPONDENT ATTORNEY FEES

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PAYABLE BY THE PETITIONER IN THE AMOUNT OF \$3,500 WITHOUT PREJUDICE TO FURTHER REQUEST(S) AS THE MATTER PROCEEDS.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

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2. CAROLINA L. CUMPA V. KELVIN MONTEZA

25FL0645

This matter is before the court on the Request for Order (RFO) filed by the Petitioner on January 22, 2026, to modify child support retroactive to the date of filing the RFO. The court, on its own motion, continued the matter from March 04, 2026, to allow the Petitioner additional time to submit a signed Income and Expense Declaration (I&E), and thereafter, allow the Respondent an opportunity to respond. The court ordered the Petitioner to file and serve the signed I&E on or before March 11, 2026; and the Respondent to file and serve his Responsive Declaration and I&E on or before March 20, 2026.

It appears that the court incorrectly determined that the Petitioner did not sign her I&E under the penalty of perjury. The court has reviewed and considered the I&E, which indicates that the Petitioner became unemployed on November 16, 2025.

On March 20, 2026, the Respondent filed his current I&E. The Respondent states he started a new job at Pyramid Investment LLC on January 01, 2026. Attached to Respondent's I&E are paystubs from (1) his previous employer, Lake Tahoe Aleworx LLC (which the court does not consider because the Respondent stopped working for this employer at the end of December 2025); and (2) Pyramid Investment LLC, covering the period of January 01, 2026, through February 15, 2026, and showing gross earnings of \$3,565.78. Therefore, the Respondent's current gross monthly income is approximately \$2,315.00 (rounded down from \$2,315.44).

The current child custody and visitation order is contained in the court's minute order issued September 24, 2025: Petitioner shall have primary custody of the minor children; and Respondent shall have visitation with the minor children every Friday from 5:00 p.m. to Saturday at 2:00 p.m. and on Sundays from 6:30 a.m. to 2:00 p.m. Therefore, for purposes of child support, the Respondent's child custody share is 17 percent, rounded up (28.5 hours / 168 hours in a week = 16.9 percent).

As shown in the attached XSpouse calculation printout, Respondent is ordered to pay Child Support to the Petitioner in the amount of \$590.00 beginning February 01, 2026, and the first of each month thereafter until further order of the court. The court orders the Respondent to pay \$188.80 Child Support for the month of January 2026 (32 percent of the monthly support amount).

TENTATIVE RULING #2: THE RFO IS GRANTED. THE RESPONDENT IS ORDERED TO PAY CHILD SUPPORT TO THE PETITIONER IN THE AMOUNT OF \$590.00 BEGINNING FEBRUARY 01, 2026, AND THE FIRST OF EACH MONTH THEREAFTER UNTIL FURTHER ORDER OF THE COURT. THE COURT ORDERS THE RESPONDENT TO PAY \$188.80 CHILD SUPPORT FOR THE MONTH OF JANUARY 2026 (32 PERCENT OF THE MONTHLY SUPPORT AMOUNT).

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR